

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Connors	Team: Squad #09	CCRB Case #: 201709440	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 11/08/2017 12:01 AM	Location of Incident: In front of 104 East 165th Street	18 Mo. SOL 5/8/2019	Precinct: 44		
Date/Time CV Reported Fri, 11/10/2017 12:31 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 11/10/2017 12:31 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Nichol Camilo	16896	957417	044 PCT
2. DTS Steven Ramunno	5143	930874	044 PCT
3. POM Joseph Boyer	21350	959502	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DTS Steven Ramunno	Abuse: Detective Steven Ramunno stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . DTS Steven Ramunno	Abuse: Detective Steven Ramunno stopped the vehicle in which § 87(2)(b) was an occupant.	B . Exonerated
C . POF Nichol Camilo	Abuse: Police Officer Nichol Camilo stopped the vehicle in which § 87(2)(b) was an occupant.	C . Exonerated
D . POF Nichol Camilo	Abuse: Police Officer Nichol Camilo stopped the vehicle in which § 87(2)(b) was an occupant.	D . Exonerated
E . POM Joseph Boyer	Abuse: Police Officer Joseph Boyer stopped the vehicle in which § 87(2)(b) was an occupant.	E . Exonerated
F . POM Joseph Boyer	Abuse: Police Officer Joseph Boyer stopped the vehicle in which § 87(2)(b) was an occupant.	F . Exonerated
G . POM Joseph Boyer	Abuse: Police Officer Joseph Boyer frisked § 87(2)(b)	G . Unsubstantiated
H . POM Joseph Boyer	Abuse: Police Officer Joseph Boyer searched § 87(2)(b)	H . Unsubstantiated
I . POF Nichol Camilo	Abuse: Police Officer Nichol Camilo searched the vehicle in which § 87(2)(b) was an occupant.	I . Exonerated
J . POF Nichol Camilo	Abuse: Police Officer Nichol Camilo searched the vehicle in which § 87(2)(b) was an occupant.	J . Exonerated
K . POM Joseph Boyer	Abuse: Police Officer Joseph Boyer searched the vehicle in which § 87(2)(b) was an occupant.	K . Exonerated
L . POM Joseph Boyer	Abuse: Police Joseph Boyer searched the vehicle in which § 87(2)(b) was an occupant.	L . Exonerated
§ 87(4-b) § 87(2)(g)		

Case Summary

On November 15, 2017, § 87(2)(b) filed this complaint on his and § 87(2)(b)'s behalf via telephone at the CCRB.

On November 8, 2017, at approximately 11:46 a.m., § 87(2)(b) and his friend, § 87(2)(b) were inside of § 87(2)(b)'s vehicle next to a fire hydrant in front of 104 East 165th Street in the Bronx.

Approximately 15 minutes later, a marked police van drove up next to § 87(2)(b)'s driver's side door. Inside of the vehicle were Det. Steven Ramunno, PO Nichol Camilo, and PO Joseph Boyer of the 44th Precinct. Det. Ramunno asked § 87(2)(b) for his driver's license and § 87(2)(b) provided it (**Allegation A – F: Abuse of Authority, exonerated**).

Det. Ramunno informed § 87(2)(b) he had an outstanding warrant, and then placed him under arrest. PO Boyer then walked around to the front passenger side of the vehicle, where § 87(2)(b) was seated, and told him to exit the vehicle. PO Boyer then allegedly frisked and searched § 87(2)(b) (**Allegation G and Allegation H: Abuse of Authority, unsubstantiated**). PO Camilo and PO Boyer then entered and searched § 87(2)(b)'s vehicle. The officers entered via all four doors of the vehicle, as well as the trunk of the vehicle. Nothing was recovered from this search (**Allegation I – L: Abuse of Authority, exonerated**).

After searching the vehicle, PO Camilo drove § 87(2)(b)'s vehicle to the 44th Precinct stationhouse. Det. Ramunno and PO Boyer transported § 87(2)(b) to the 44th Precinct stationhouse for arrest processing (**Board Review 01**) (**Board Review 02**).

§ 87(2)(b) was arrested § 87(2)(a) 160.50 and issued a Desk Appearance Ticket. § 87(2)(b) was neither arrested nor issued a summons.

There is no known video footage for this incident.

Findings and Recommendations

Allegation A – Abuse of Authority: Detective Steven Ramunno stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B – Abuse of Authority: Detective Steven Ramunno stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation C – Abuse of Authority: Police Officer Nichol Camilo stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation D – Abuse of Authority: Police Officer Nichol Camilo stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation E – Abuse of Authority: Police Officer Joseph Boyer stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation F – Abuse of Authority: Police Officer Joseph Boyer stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) acknowledged that his vehicle was parked on 104 East 165th Street, next to a fire hydrant, while the vehicle was running, as he was seated in a reclined position, waiting for a

parking space to become available. § 87(2)(b)'s testimony was consistent with § 87(2)(b)'s § 87(2)(g) (Encl. Board Review 01 and 02).

Det. Ramunno and PO Camilo provided consistent testimony regarding their observation of § 87(2)(b)'s vehicle parked next to a fire hydrant, with the vehicle turned on, and the driver appearing to be slouched in the driver's seat (**Board Review 03**) (**Board Review 04**). The officers determined collectively to stop this vehicle to determine the state of the driver and inquire as to why they were parked in front of a hydrant.

PO Boyer testified he had no recollection of this incident but acknowledged that he was working with Det. Ramunno and PO Camillo during the tour in which this incident occurred (**Board Review 05**).

Vehicle Traffic Law: Article 32 Section 1202 (3b) states no person shall stop, stand or park a vehicle within fifteen feet of a fire hydrant, except when such a vehicle is attended by a licensed operator or chauffeur who is seated in the front seat and who can immediately move such a vehicle in case of emergency, unless distance is indicated by official signs, markings or parking meters (**Board Review 06**).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g). Therefore, it is recommended that **Allegations A, B, C, D, E, and F** be closed as **exonerated**.

Allegation G – Abuse of Authority: Police Officer Joseph Boyer frisked § 87(2)(b)

Allegation H – Abuse of Authority: Police Officer Joseph Boyer searched § 87(2)(b)

After it was determined that § 87(2)(b) was under arrest, § 87(2)(b) alleged that an officer, identified as PO Boyer, asked him to exit from the vehicle. PO Boyer then allegedly frisked and searched § 87(2)(b) by patting down § 87(2)(b)'s jacket and jeans and entering into his coat pockets and front jean pockets (**Encl. Board Review 02**). § 87(2)(b) did not witness this interaction (**Encl. Board Review 01**).

During his CCRB interview, PO Boyer denied having any independent recollection of this incident. While PO Boyer acknowledged he has a memo book entry which cites he worked with Det. Ramunno and PO Camilo during the tour in which this incident occurred, he had no entries regarding this incident (**Encl. Board Review 05**). PO Camilo did not remember observing PO Boyer taking these actions and Det. Ramunno did not remember PO Boyer being present for this incident (**Encl. Board Review 03 and 04**).

§ 87(2)(g)
§ 87(2)(g)
Therefore, it is recommended that **Allegation G and Allegation H** be closed as **unsubstantiated**.

Allegation I – Abuse of Authority: Police Officer Nichol Camilo searched the vehicle in which § 87(2)(b) was an occupant.

Allegation J – Abuse of Authority: Police Officer Nichol Camilo searched the vehicle in which § 87(2)(b) was an occupant.

Allegation K – Abuse of Authority: Police Officer Joseph Boyer searched the vehicle in which § 87(2)(b) was an occupant.

Allegation L – Abuse of Authority: Police Officer Joseph Boyer searched the vehicle in which § 87(2)(b) was an occupant.

After § 87(2)(b) had been placed under arrest and entered into the police van, § 87(2)(b) observed two officers enter into all four doors of his vehicle, and search inside the center console, glove compartment and trunk (**Encl. Board Review 01**).

Det. Ramunno and PO Camilo acknowledged a search of § 87(2)(b)'s vehicle was conducted on scene, after it was determined that § 87(2)(b) was under arrest. PO Camilo testified that after learning the passenger, § 87(2)(b) was not licensed to operate a motor vehicle, she and PO Boyer conducted a search of the vehicle before it could be brought back to the stationhouse for safekeeping. PO Camilo described this as a search of the driver's side and rear driver's side floor areas. PO Camilo entered into the center console of the vehicle, which was covered by an unlocked lid. PO Camilo did not remove any items from the center console. Simultaneously, PO Boyer searched the front passenger and rear front passenger floor areas. PO Camilo did not remove any items from the vehicle, and did not remember seeing PO Boyer do so. No search of the trunk had been conducted on scene. After conducting this search, PO Camilo entered into the vehicle and drove it to the 44th Precinct stationhouse. PO Camilo stated that the vehicle was considered to be arrest evidence and vouchered (**Encl. Board Review 04**). Det. Ramunno did not recall when or if a search of § 87(2)(b)'s vehicle had been conducted, and was uncertain if PO Boyer was present for the incident (**Encl. Board Review 03**). PO Boyer did not remember being present for this incident (**Encl. Board Review 05**).

NYPD Patrol Guide Procedure 218-13 states whenever any property comes into the custody of this Department an inventory as follows, (1) search the interior of the vehicle thoroughly, (a) this search should include any area that may contain valuable included but not limited to; (1) glove compartment, (2) console, (3), map pockets in or on doors and rear sides of seats, (4) areas under the seats and in and around the seat stuffing and springs, (5) under floor mats, (6) under and behind the dashboard, (7) inside the ashtrays, (8) in the air vents where accessible, (9) under the hood, (10) trunk (**Board Review 07**).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g) [REDACTED] Therefore, it is recommended that **Allegation J** and **Allegation K** be closed as **exonerated**.

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (**Board Review 09**).
- This is § 87(2)(b)'s first CCRB complaint (**Encl. Board Review 09**).
- Det. Ramunno has been a member of service for 14 years and this is his 26th CCRB complaint. § 87(2)(g) (Board Review 10).
- PO Camilo has been a member of service for three years and this is her first CCRB complaint (**Encl. Board Review 10**).
- PO Boyer has been a member of service for two years and this is his third CCRB complaint. § 87(2)(g) (Encl. Board Review 10).

Mediation, Civil and Criminal Histories

- Mediation was presented to both § 87(2)(b) and § 87(2)(b). Both opted to pursue an investigation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
- [REDACTED]
- On January 24, 2018, a request was sent to the New York City Comptroller's Office in regards to any notice of claim filed for this incident. To date, a notice of claim has not been filed for this incident (**Board Review 12**).

Squad No.: **9**

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date